

UTAH WAIVER AND RELEASE UPON FINAL PAYMENT

Property Name:	<u>The Keyes at 12th Street</u>
Property Location:	<u>Lot 1 - 1075 Century Dr, Ogden</u>
Undersigned's Customer:	<u>Rich Development Inc</u>
Invoice/Payment Application Number:	<u>SCRs 12034357, 12179361, Invoice 6816554</u>
Payment Amount:	<u>\$506.48</u>

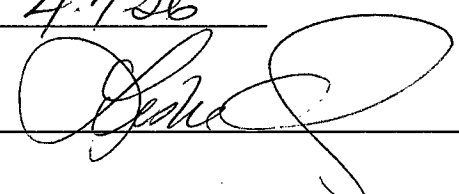
To the extent provided below, this document becomes effective to release and the undersigned is considered to waive any notice of lien or right under Utah Code Ann. Title 38, Chapter 1a, Preconstruction and Construction Liens, or any bond right under Utah Code Ann., Title 14, Contractor's Bonds, or Section 63G-6a-1103 related to payment rights the undersigned has on the above described Property once:

- 1) the undersigned endorses a check in the above referenced Payment Amount payable to the undersigned; and
- 2) the check is paid by the depository institution on which it is draw.

This waiver and release applies to the final payment for the work, materials, equipment or combination of work, materials, and equipment furnished by the undersigned to the Property or to the Undersigned's Customer.

The undersigned warrants that the undersigned either has already paid or will use the money the undersigned receives from the final payment promptly to pay in full all the undersigned's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or combination of work, materials, and equipment that are the subject of this waiver and release.

Dated: 4.7.06

By: 


(Company Name)

Its: 